

23STCV19342 23STCV19342

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Case Number: 23STCV19342 Hearing Date: June 29, 2026 Dept: 406

ESTER FISHMAN,

Plaintiff,

v.

MARCUS FISHMAN, et al.,

Defendants.

Case No.: 23STCV19342

Hearing Date: June 29, 2026

[TENTATIVE]

order RE:

plaintiff/cross-defendant ester

fishman's motion to stay proceedings

BACKGROUND

On August 14, 2023, Plaintiff Ester

Fishman (Ester) filed this quiet title action against Defendant Marcus Fishman (Marcus) and all persons claiming any right in the subject property. Ester and Marcus were married in 2013 and separated in 2016. Ester alleges that during the parties' relationship, Marcus was abusive and controlling. Ester alleges that under Marcus' undue influence and coercion, she granted title of the two

subject properties (Tracy and Glendale) to both herself and Marcus even though she obtained the properties prior to marriage. Ester filed this action to claim legal title to the Tracy and Glendale properties.

On December 18, 2023, Marcus filed a cross-complaint for (1) partition and (2) accounting. Marcus alleges that he owns an undivided one-half interest in the Tracy and Glendale properties, as well as certain personal property derived from a business venture.

The matter came on for trial between October 6, 2025 and October 14, 2025. The Court issued a statement of decision on November 17, 2025.

On January 14, 2026, the Court entered an Interlocutory Judgment of Partition, finding that Ester and Marcus have an equal interest in the Tracy Property and granting Marcus' request for partition of the Tracy Property. The interlocutory judgment also orders the appointment of a receiver to facilitate the sale.

On January 27, 2026, the Court issued an order appointing Blake C. Alsbrook as the receiver.

On May 27, 2026, the Court entered a Judgment, granting Ester's request for quiet title of the Glendale Property, denying Ester's request for quiet title of the Tracy Property, and denying Marcus' request for partition of the Glendale Property.

On June 1, 2026, Ester filed the instant motion to stay the proceedings pending her appeal of the interlocutory judgment. Marcus filed an opposition on June 15, 2026. Ester filed a reply on June 22, 2026.

LEGAL STANDARD

An appeal may be taken "[f]rom an interlocutory judgment in an action for partition determining the rights and interests of the respective parties and directing partition to be made." (Code Civ. Proc., § 904.1(a)(9).) "Except as provided in Sections 917.1 to 917.10, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon

the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order.” (Id., § 916(a).)

“To prevent injuries ‘from the premature enforcement of a determination which may later be found to have been wrong,’ the law has developed a set of rules and procedures for staying enforcement of certain court orders while they are reviewed on appeal.” (Daly v. San Bernardino County Bd. of Supervisors (2021) 11 Cal.5th 1030, 1035.) “Today, Code of Civil Procedure section 916 continues to make stay pending appeal the default, subject to various exceptions.” (Id. at p. 1039.) “Where the statutory conditions have been met and a stay on appeal is prescribed, the courts lack discretion to deny it except as other statutes may authorize.” (Ibid.)

DISCUSSION

I.

Stay

“The purpose of the automatic stay provision of section 916, subdivision (a) ‘is to protect the appellate court’s jurisdiction by preserving the status quo until the appeal is decided. The [automatic stay] prevents the trial court from rendering an appeal futile by altering the appealed judgment or order by conducting other proceedings that may affect it.’” (Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th 180, 189.) A stay is warranted where “the possible outcomes on appeal and the actual or possible results of the proceeding are irreconcilable.” (Id. at p. 190.)

Here, the interlocutory judgment grants a partition sale of the Tracy Property, whereas a successful appeal would establish that the property should not be so disposed. These two results “are irreconcilable.” (See Varian, *supra*, 35 Cal.4th at p. 190.) In other words, enforcing the judgment would “render[] an appeal futile.” (Id. at p. 189.) Therefore, a stay is warranted, subject to an undertaking as discussed below.

II.

Undertaking

a. Section 917.4

As stated above, the automatic stay under section 916 is subject to various exceptions as enumerated in sections 917.1 to 917.10. One such exception appears in section 917.4, which provides as follows:

The perfecting of an appeal shall not stay enforcement of the judgment or order in the trial court if the judgment or order appealed from directs the sale, conveyance or delivery of possession of real property which is in the possession or control of the appellant or the party ordered to sell, convey or deliver possession of the property, unless an undertaking in a sum fixed by the trial court is given that the appellant or party ordered to sell, convey or deliver possession of the property will not commit or suffer to be committed any waste thereon and that if the judgment or order appealed from is affirmed, or the appeal is withdrawn or dismissed, the appellant shall pay the damage suffered by the waste and the value of the use and occupancy of the property, or the part of it as to which the judgment or order is affirmed, from the time of the taking of the appeal until the delivery of the possession of the property.

(Code Civ. Proc., § 917.4.)

Here, the interlocutory judgment directs the sale of the Tracy Property. Ester argues that an undertaking is not needed because she jointly owns the property with Marcus, and they are both appealing the judgment. At the very least, Ester argues, both parties should be required to post an undertaking.

However, the statute requires an undertaking if the property is “in the possession or control of the appellant.” (Code Civ. Proc., § 917.4.) There is no carve-out for joint ownership. Ester admits that she has “exclusive possession of the Tracy property” due to a prior restraining order against Marcus. (E. Fishman Decl. ¶ 2.) For purposes of section 917.4, Ester is the appellant in possession or control of the subject property.

Moreover, the appeal at issue is taken from the January 14, 2026 interlocutory judgment, not the judgment of May 27,

2026. Ester is the one appealing the interlocutory judgment and requesting a stay. Marcus is neither appealing the interlocutory judgment nor requesting a stay of its enforcement. Marcus is not required to post an undertaking to secure his opponent's request for a stay.

Ester also cites to *Williams v. Wells*

Fargo Bank & Union Trust Co. (1941) 17 Cal.2d 104, 107 for the proposition that a bond is limited to cases where "the appellant was adjudged to have money or other property in his possession belonging to the respondent, or was required to perform some act for the benefit of the respondent or in pursuance of the directions of the judgment or order appealed from." However, *Williams* interpreted a since-repealed statute and was decided before the enactment of section 917.4. Nothing in the text of section 917.4, nor any authority interpreting it, suggests that it is limited to the situation enumerated in *Williams*.

Thus, section 917.4 applies and requires Ester to post an undertaking.

b. Amount

An undertaking under section 917.4 should account for "the damage suffered by the waste and the value of the use and occupancy of the property" while the appeal is pending. (Code Civ. Proc., § 917.4.) In this case, the Tracy Property has suffered fire damage which resulted in an insurance payout of \$425,000 for repairs. To date, the property has not been repaired. The property will be further damaged, and the cost of repairs will only increase, as time passes. In other words, "respondents' damages would continue to increase until performance of the judgment if affirmed." (*Balestrieri v. Sullivan* (1956) 138 Cal.App.2d 559, 564.) Thus, "the trial court could conclude that a bond to guarantee performance of the judgment was necessary." (*Ibid.*)[1]

The insurer has already estimated the cost of repairs at \$425,000, which may only be a fraction of the total repair costs to begin with. Additionally, an undertaking must account for the continued damage and rising costs over time. Therefore, the Court finds that a reasonable undertaking amount under the circumstances is \$500,000.

Ester argues that the undertaking amount

should account for an unpaid judgment in the divorce case. (Opp. 6:10-21.)

However, the divorce case is a separate proceeding. Marcus' purported failure to pay the family court judgment has no bearing on the bond amount under section 917.4 in this case.

CONCLUSION

Plaintiff/Cross-Defendant Ester

Fishman's motion to stay is GRANTED on the condition that Ester post an undertaking in the amount of \$500,000.

An Order to Show Cause Re: why the

receiver should not proceed with the sale of the Tracy Property due to failure to post an undertaking is set for
, 2026.

[1] Like Williams, Balestrieri

was decided before the passage of section 917.4. But even accepting Ester's citation to Balestrieri and her demand for a "concrete" showing of the need for a bond, that standard has been satisfied here.